

		days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiffs must provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiffs are ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2025-01483935 Segura vs. Airtech International, Inc., a California corporation;	The tentative ruling is to continue Plaintiff Mark Segura's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. There is no information as to how many of the class members or aggrieved employees speak and/or read English, which might require that the class notice also be in another language.

	This PAGA Released Claims include a release of claims for violations of Labor Code § 223, but that statute was not identified in plaintiff’s letter to the LWDA. Since plaintiff did not give the LWDA notice and an opportunity to investigate or pursue litigation itself for violations of this statute, it may not be the subject of the release in this case. (See <i>LaCour vs. Marshalls of California, LLC</i> (2023) 94 Cal. App. 5th 1172, 1192-96.) References to Labor Code § 223 should be removed from the PAGA Released Claims. The tax allocation for the settlement payment is 20% wages, 80% interest and penalties in the settlement agreement (Settlement § (C)(2)(e)), but the class notice states that the allocation is 25% wages and 75% interest and penalties (Section III(4) of the Class Notice). The documents must be consistent. The settlement agreement and class notice are inconsistent as to who will resolve workweek disputes. The class notice states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court ultimately will decide any unresolved dispute. Section IV(3)(a) of the class notice must be amended to state that the court will ultimately decide any unresolved dispute. Class members/aggrieved employees may object to the amount of the settlement allocated to PAGA penalties. Thus, column 1, row 3 of the table on Page 2 of the class notice must be amended to state: “Participating Class Members Can Object to the Class Portion of the Settlement,” with the phrase “but not the PAGA Portion of the Settlement” removed. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements.
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		Plaintiff shall provide notice of this ruling to the LWDA and Defendant.
6	30-2019-01070595 Farias vs. Sentinel Restaurant and Hospitality Group, LLC	Plaintiff Jose Farias's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is GRANTED IN PART. The court concludes that the \$256,220.00 PAGA settlement (which includes an individual settlement of \$10,000.00 to Plaintiff Jose Farias) is fair, adequate and reasonable, and approves the following specific awards: • \$76,866.00 (7.3% or \$5,611.22 to Long & Delis, and 92.7% or \$71,254.78 to Law Offices of Abraham Tang) to plaintiff's counsel for plaintiff's attorneys' fees; • \$14,481.29 (\$1,632.50 to Long & Delis and \$12,848.79 to Law Offices of Abraham Tang) to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Jose Farias as enhancement award, as requested; • \$6,500.00 to Phoenix Group, the settlement administrator, as requested; • \$107,529.53 to the LWDA for its share of PAGA penalties; and • \$35,843.18 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for March 15, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.